

Wasatch Lien Service, LLC

September 9, 2025

CERTIFIED NO. 9489 0090 0027 6491 3494 57

12SB, LLC
79 West 900 North, Suite B
Springville, UT 84663

Re: Lien Against: 387 West 12th Street, Ogden, Utah
Lien Claimant: Kilgore Companies, LLC
Contracting Party: Sunrise Elite Construction, LLC

Gentlemen/Ladies:

Please be advised that the attached Construction Lien has been recorded at the request of Kilgore Companies, LLC (the "Lien Claimant"). The Construction Lien is allowed by Utah law, and it is intended to secure the payment of work, equipment and/or materials provided by the Lien Claimant for the improvement of your real property. The Construction Lien establishes and preserves the Lien Claimant's legal rights for collection granted to all contractors or suppliers pursuant to Utah law. If you do not understand the legal ramifications of this Construction Lien, you should seek legal counsel or representation.

This Construction Lien will be released from the County records upon payment of all monies due to the Lien Claimant. If the obligation is not paid, the Lien Claimant reserves the right to take further action to enforce its right of lien or bond claim, including that of commencing an action to foreclose the Construction Lien.

The Lien Claimant's preference, of course, is to avoid any litigation of this matter; all parties would be best served by your prompt satisfaction of this account. Toward that end, we encourage you to contact the Lien Claimant directly and make the necessary payment arrangements.

Your acknowledgment of this Construction Lien and any future correspondence regarding this Construction Lien should be made directly to the Lien Claimant. Please contact Siscelia Gutierrez of Kilgore Companies, LLC at (801) 948-7364, as all matters regarding this account are handled by them or their appointed legal counsel.

Respectfully,

Jamie Ornich
Wasatch Lien Service, LLC

cc: Kilgore Companies, LLC
Sunrise Elite Construction, LLC
2510-0925-11



W3384338

WHEN RECORDED RETURN TO:

Wasatch Lien Service, LLC
3165 East Millrock Drive, Suite 500
Salt Lake City, UT 84121
(801) 278-5436
Fax: (801) 438-2077

E# 3384338 PG 1 OF 2
B. Rahimzadegan, WEBER COUNTY RECORDER
09-Sep-25 0246 PM FEE \$40.00 DEP SD
REC FOR: WASATCH LIEN SERVICE
ELECTRONICALLY RECORDED

Parcel I.D.# 12-120-0049

NOTICE OF CONSTRUCTION LIEN

NOTICE IS HEREBY GIVEN by **Kilgore Companies, LLC**, P.O. Box 741805, Los Angeles, California 90074, (801) 948-7364 (the "Lien Claimant"), by and through its duly authorized limited recording agent, Wasatch Lien Service, LLC, that Lien Claimant holds and claims a construction lien (the "Construction Lien") in accordance with the provisions of Utah Code Ann. Sections 38-1a-101 et seq. The Construction Lien is upon and against the real property and improvements owned or reputed to be owned by **125B, LLC**. Said real property is located in Ogden, Weber County, State of Utah, and more particularly described as follows:

SEE ATTACHED EXHIBIT A.

The Lien Claimant was employed by or provided ready mix concrete at the request of **Sunrise Elite Construction, LLC**, with the address of 338 West 350 South, Kaysville, Utah 84037, for the benefit and improvement of the above-described real property. The Lien Claimant first provided materials and services on May 12, 2025 and last provided materials and services on May 12, 2025. The Lien Claimant claims the principal amount of **\$14,644.79** under the Construction Lien. The Lien Claimant also claims that it is entitled to recover interest pursuant to Utah Code Ann. Section 38-1a-309, costs pursuant to Utah Code Ann. Section 38-1a-706, and attorney fees pursuant to Utah Code Ann. Section 38-1a-707.

PROTECTION AGAINST LIENS AND CIVIL ACTION

NOTICE IS HEREBY PROVIDED in accordance with Section 38-11-108 of the Utah Code that under Utah law an "owner" may be protected against liens being maintained against an "owner-occupied residence" and from other civil action being maintained to recover monies owed for "qualified services" performed or provided by suppliers and subcontractors as part of this contract, if either section (1) or (2) is met: (1)(a) the owner entered into a written contract with an original contractor, a factory built housing retailer, or a real estate developer; (b) the original contractor was properly licensed or exempt from licensure under Title 58, Chapter 55, Utah Construction Trades Licensing Act at the time the contract was executed, and (c) the owner paid in full the contracting entity in accordance with the written contract and any written or oral amendments to the contract; or (2) the amount of the general contract between the owner and the original contractor totals no more than \$5,000. (3) An owner who can establish compliance with either section (1) or (2) may perfect the owner's protection by applying for a Certificate of Compliance with the Division of Occupational and Professional Licensing. The application is available at www.dopl.utah.gov/r1rf.

WASATCH LIEN SERVICE, LLC
Agent for the Lien Claimant

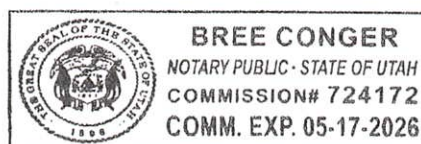
By: _____
Jamie Crnich, Manager

STATE OF UTAH)

: ss.

COUNTY OF SALT LAKE)

Jamie Crnich, as manager of Wasatch Lien Service, LLC, personally appeared before me on September 9, 2025 and acknowledged that Wasatch Lien Service, LLC is the agent for Kilgore Companies, LLC, and acknowledged that she executed the above document.



Bree Conger
Notary Public
Order #2510-0925-11

EXHIBIT A

PART OF THE NORTHEAST QUARTER OF SECTION 19 AND NORTHWEST QUARTER OF SECTION 20, TOWNSHIP 6 NORTH, RANGE 1 WEST, SALT LAKE BASE AND MERIDIAN, U.S. SURVEY: BEGINNING AT A POINT ON THE EAST OF SECTION 19 LINE 977.2 FEET NORTH FROM THE SOUTHEAST CORNER OF QUARTER SECTION 19, SAID POINT BEING AT THE INTERSECTION OF SOUTH LINE OF 12TH STREET AND THE EAST OF SECTION 19 LINE, AND ALSO BEING THE NORTHEAST CORNER OF PARCEL #12-099-0002; THENCE AROUND THE OVERALL BOUNDARY OF PARCELS #12-099-0002, #12-120-099-0017 AND PARCEL #12-120-0048 ENCLUSIVE, THE FOLLOWING COURSES: SOUTH 89D02'41" EAST, A DISTANCE OF 193.60 FEET; THENCE SOUTH 00D58'00" WEST, A DISTANCE OF 425.69 FEET; THENCE NORTH 86D43'00" WEST, A DISTANCE OF 147.47 FEET; THENCE CONTINUE WESTERLY ALONG SAID LINE, A DISTANCE OF 44.99 FEET; THENCE NORTH 80D35'06" WEST, A DISTANCE OF 162.03 FEET; THENCE NORTH 00D47'21" EAST, A DISTANCE OF 394.04 FEET; THENCE SOUTH 89D02'41" EAST, A DISTANCE OF 160.19 FEET TO THE POINT OF BEGINNING. CONTAINING 3.361 ACRES, MORE OR LESS. SUBJECT TO BOUNDARY LINE AGREEMENT. E# 3168613